

1.

CASE #	CASE NAME	HEARING NAME
CVPS2406846	SCHERMAN VS HYATT	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF SOPHIA SCHERMAN

Tentative Ruling: The court issued its tentative ruling on 7.27.26. No changes have been made. Hearing was continued to 8.05.26 for oral argument to be reported.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2601632	KOGAN VS PELTZ	DEMURRER ON COMPLAINT OF VADIM "DAVID" KOGAN

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 672.)

In ruling on a demurrer, extrinsic evidence may not be considered. (*Lane v. I.U.O.E. Stationary Engineers* (1989) 212 Cal. App. 3d 164.) In addition, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A complaint with certain exceptions, need only contain a "statement of the facts constituting the cause of action, in ordinary and concise language" (C.C.P. § 425.10(a)(1)) and will be upheld "so long as the pleading gives notice of the issues sufficient to enable preparation of a defense." (*Okun v. Superior Court* (1981) 29 Cal.3d 442, 458.)

2nd and 3rd Causes of Action for Negligence and Negligence Per Se:

The elements of a negligence claim are: (1) legal duty owed to plaintiffs to use due care; (2) breach of duty; (3) causation; and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

"Negligence per se" is an evidentiary doctrine, codified at Evidence Code section 669, which creates a presumption of negligence if: (1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) the violation proximately caused injury to person or property; (3) the injury resulted from an occurrence the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted. (Evid. Code § 669(a).) Negligence per se is not to an independent cause of action, and does not provide a private right of action for violation of a statute. (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1285.) "Instead, it operates to establish a presumption of negligence for which the statute serves the subsidiary function of providing evidence of an element of a preexisting common law